

26TRCV01674 26TRCV01674

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Case Number: 26TRCV01674 Hearing Date: August 11, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 11, 2026

Calendar No.

PROCEEDINGS

Esmeralda

Hernandez Sanches, et al. v. Los Angeles Unified School District, et al.

26TRCV01674

1.

Los Angeles

Unified School District's Demurrer to Complaint

TENTATIVE RULING

Los Angeles Unified School District's Demurrer to
Complaint is overruled.

Background

Plaintiffs filed the Complaint on May 11, 2026.

Plaintiffs allege the following facts. On June 5, 2025, Plaintiff, Esmeralda Hernandez Sanches, a minor, was injured when she fell from monkey bars on a playground on Defendants' premises. Plaintiffs allege the following causes of action: 1. General Negligence; 2. Premises Liability.

Meet and Confer

Defendant filed a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl. Amanda C. Lewis,).

Request for Judicial Notice

Defendant's request for judicial notice is granted in part. The Court takes judicial notice of the existence of the website of the City of Manhattan Beach but does not take judicial notice of the truth of any of the matters asserted therein.

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case

"with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of

action.” (Gressley v. Williams

(1961) 193 Cal.App.2d 636, 643-644.)

“Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.”

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605,

609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is “uncertain.” Uncertainty exists where a complaint’s factual allegations are so confusing they do not sufficiently apprise a

defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp.

(1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the Complaint and the first and

second causes of action for failure to state sufficient facts to state a cause

of action. CCP § 430.10(e). Defendant argues that the demurrer must be

sustained because Defendant does not own, operate, and/or control the location

of the incident – 1601 Manhattan Beach Boulevard, Manhattan Beach, CA 90266

known as Polliwog Park. Instead, Defendant argues that it is owned by the

Manhattan Beach Unified School District. To support this argument, Defendant

merely points to statements made on the City of Manhattan Beach website.

First Cause of Action for Negligence

Second Cause of Action for Premises Liability

Defendant’s demurrer to the first and second causes of

action is overruled. Plaintiff states sufficient facts to state a cause of action.

“To state a cause of action for negligence, a

plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2)

the defendant breached that duty, and (3) the breach proximately caused the

plaintiff’s damages or injuries.” Lueras v. BAC Home Loans Servicing, LP (2013)

221 Cal.App.4th 49, 62. The elements of a cause of action for premises

liability are the same as those for negligence. Accordingly, the plaintiff must

prove, legal duty to use due care, a breach of such legal duty, and the breach

as the proximate or legal cause of the resulting injury.” Jones v. Awad

(2019) 39 Cal.App.5th 1200, 1207 (internal citations and quotations omitted).

Here, Plaintiff has alleged sufficient facts to meet

each of the elements – duty owed, breach, causation, and damages. Plaintiff

alleges that she was lawfully on Defendant's property and that Defendant owned, maintained, and managed the property. Plaintiff also alleges that Plaintiff was injured due to Defendant "negligently hiring, training, supervising, controlling and/or monitoring employees and agents responsible for the maintenance, inspections, repairing, supervision, control and operations[.]" Complaint, p. 4, GN-1. Plaintiff also alleges that "she fell due to dangerous condition(s) on Defendants' property that was created, repaired, inspected and/or maintained by Defendants, or their agents, in a negligent fashion." (Complaint, p. 5, Prem L-1).

Thus, as the party that owned, maintained, managed, or controlled the property Defendant had a duty of care to maintain the property in a safe manner. Plaintiff alleges that Defendant breached that duty by creating a hazardous condition on the property namely the condition of the playground under the monkey bars. Plaintiff alleges resulting damages. (Complaint, pages 4-5). Also, as noted, Plaintiff alleges that Defendant negligently hired, trained, and supervised employees responsible for the maintenance of the property. Plaintiff has provided a sufficient straightforward pleading on a Form Complaint of simple causes of action of negligence and premises liability.

Defendant argues that it is not the owner of the facility and that another public entity is the owner. Defendant solely points to statements made on a website of the City of Manhattan Beach. However, the Court only takes judicial notice of the existence of the website and not the truth of any matters asserted therein. Proper evidentiary foundation is necessary to establish ownership of the property in question. Further, as noted above, factual issues will need to be adjudicated as to issues of control of the property, as well as the alleged negligent hiring, training, and supervision of employees who managed and maintained the property.

By arguing that it did not own, maintain, or manage the property, or did not control the property, Defendant is attempting to introduce facts that are not included in the Complaint and cannot be adjudicated definitively by simply pointing to a website. For purposes of a demurrer, the Court must deem the allegations of the Complaint as true. The Court reiterates the simple, well-recognized, and longstanding law regarding demurrers – the factual matters set forth in the Complaint are deemed true and the Court cannot adjudicate factual issues with a demurrer.

To the extent that Defendant is seeking more particularized

facts, specificity in pleading is not required to plead a negligence cause of action. "To survive demurrer, a plaintiff is only required to plead ultimate facts.... Whether [they] can produce at trial, or in response to a motion for summary judgment, evidence that will in fact support all or any of [their] allegations ... is another matter. [A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.] If there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend. [. . .] There is no need to require specificity in the pleadings because modern discovery procedures necessarily affect the amount of detail that should be required in a pleading." *Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 533 (internal citations and quotations omitted; emphasis in original).

However, specific facts as to the existence of statutory liability are required to plead a cause of action against a public entity. "[T]o state a claim against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity. To survive a demurrer, however, even against a governmental entity such as a public school district, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 23. The specific facts of statutory liability have been sufficiently set forth. The type of particularized facts that Defendant insists must be set forth, such as the manner in which Defendant controlled the property, can be developed through discovery and the evidence gathering process.

The demurrer is overruled. Defendant is ordered to file and serve an Answer within 10 days of this date.

Plaintiff is ordered to give notice of this ruling.